



CHAPTER cxxix.

An Act to confirm certain Provisional Orders of the Local A.D. 1912.
Government Board relating to Cambridge Coalville
Darlington Kington Prescot and Shifnal (Rural).
[7th August 1912.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Orders as amended and set out in the schedule Orders in
hereto shall be and the same are hereby confirmed and all the schedule
provisions thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (No. 3) Act 1912.

A.D. 1912.

SCHEDULE.

BOROUGH OF CAMBRIDGE.

*Cambridge
Order.*

*Provisional Order for altering the Cambridge Corporation
Act 1850 and the Cambridge University and Corporation
Act 1894.*

To the Mayor Aldermen and Burgesses of the Borough of
Cambridge;—

And to all others whom it may concern.

WHEREAS the Borough of Cambridge (herein-after referred to as "the
Borough") is an Urban District of which the Mayor Aldermen and
Burgesses acting by the council (herein-after referred to as "the
Corporation") are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

And whereas the Corporation are or claim to be the owners of
the markets and fairs within the Borough and also of the fair at
Reach in the Parishes of Burwell and Swaffham Prior (which markets
and fairs are herein-after referred to respectively as "the Borough
markets" and "the Borough fairs");

13 & 14 Vict.
c. xxxvii.
57 & 58 Vict.
c. lx.
And whereas there are in force in the Borough the unrepealed
provisions of the Cambridge Corporation Act 1850 and the Cambridge
University and Corporation Act 1894 (each of which Acts is herein-
after referred to as the Act of the year in which it was passed and
which Acts are herein-after together referred to as "the Local Acts")
as altered by a Provisional Order duly confirmed by Parliament which
does not affect the subject-matter of this Order;

And whereas by Section 27 of the Act of 1850 as altered by
Section 23 of the Act of 1894 the Corporation are empowered to
demand and take in the Borough fairs stallages rents and tolls not
exceeding the amounts specified under the general heading "The
Fairs" in Schedule (C) to the Act of 1850 including the amounts
specified under the heading "Groundage" in the said schedule;

And whereas by Section 23 of the Act of 1894 the Corporation
are empowered to demand and receive from persons selling or offering
or exposing for sale animals or things in any of the Borough markets

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or using or occupying shops stalls standings or other conveniences in any such market or frequenting any such market tolls rents stallages and charges not exceeding those specified in the schedule to the Act of 1894 including those specified under the heading "Corn Exchange" in the said schedule ;

A.D. 1912.
 —
*Cambridge
 Order.*

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
 c. 55.

Art. I. The Act of 1850 shall be altered by the substitution for the stallages rents and tolls specified under the heading "Groundage" in Schedule (C) thereto of the stallages rents and tolls specified in Schedule A to this Order.

Alteration of
 Fair Tolls.

Art. II. The Act of 1894 shall be altered by the substitution for the tolls stallages rents and charges specified under the heading "Corn Exchange" in the schedule thereto of the tolls stallages rents and charges specified in Schedule B to this Order.

Alteration of
 Market Tolls.

Art. III. This Order may be cited as the Cambridge Order 1912.

Short title.

The SCHEDULES above referred to.

SCHEDULE A.

	£	s.	d.
For every space of ground occupied by any booth or stall or for the exposure to sale of goods wares or merchandise on which no specific toll is hereby imposed for each foot of the frontage thereof not exceeding the following sums per fair (that is to say) :—			
Where the depth does not exceed twenty feet	0	0	9
Where the depth exceeds twenty feet but does not exceed fifty feet	0	1	1½
Where the depth exceeds fifty feet	0	2	3
A 2			3

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		£	s.	d.
A.D. 1912.	For every space of ground occupied by any show or exhibition for each foot of the frontage thereof not exceeding the following sums per fair (that is to say):—			
<i>Cambridge Order.</i>	Where the depth does not exceed twenty feet - - - - -	0	0	9
	Where the depth exceeds twenty feet but does not exceed fifty feet - - - - -	0	1	6
	Where the depth exceeds fifty feet - - - - -	0	3	0
	For every space of ground occupied by any roundabouts or similar form of entertainment for each foot of the frontage thereof not exceeding the following sums per day (that is to say):—			
	Where the depth or diameter does not exceed twenty feet - - - - -	0	1	6
	Where the depth or diameter exceeds twenty feet but does not exceed fifty feet - - - - -	0	2	3
	Where the depth or diameter exceeds fifty feet - - - - -	0	3	6

SCHEDULE B.

	£	s.	d.
For every desk or box in the Corn Exchange by the year not exceeding - - - - -	3	3	0
For every half desk or box in the Corn Exchange by the year not exceeding - - - - -	2	0	0
For every other station in the Corn Exchange by the year not exceeding - - - - -	1	11	6
From every person attending the Corn Exchange for the sale of any commodity or for the transaction of any other business (not being a hirer of a desk box or station in the Corn Exchange or the bonâ fide clerk or servant of such a hirer and not being a person attending the Corn Exchange for the sale only of produce grown by himself) not exceeding—			
Per day - - - - -	0	1	6
Per annum - - - - -	1	11	6
From every person admitted to the Corn Exchange when used for market purposes not being a person referred to in the last preceding item not exceeding—			
Per day - - - - -	0	0	3
Per annum - - - - -	0	10	6

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	£	s.	d.	A.D. 1912.
For the use of the Corn Exchange when not used for market purposes not exceeding per day - - - -	3	3	0	<i>Cambridge Order.</i>
For the use of the committee room in the Corn Exchange not exceeding per day - - - - - - - -	1	1	0	

Given under the Seal of Office of the Local Government
Board this Twenty-seventh day of April One thousand
nine hundred and twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

URBAN DISTRICT OF COALVILLE.

*Provisional Order for partially repealing and altering the
Coalville Urban District Gas Act 1899.*

*Coalville
Order.*

To the Urban District Council of Coalville ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Coalville (herein-after referred
to as "the Council") are the local authority within the meaning of the
Public Health Act 1875 for the Urban District of Coalville (herein-after
referred to as "the District") ;

And whereas the provisions of the Coalville Urban District Gas 62 Vict.
Act 1899 (herein-after referred to as "the Local Act") are in force in c. xxiii.
the District ;

And whereas in pursuance of the Local Act the undertaking of
the Whitwick and Coalville Gas Company became vested in the Council
and the Council are empowered to manufacture gas and to supply the
same within the limits of that Act for the supply of gas and to
purchase land by agreement for any purpose of that Act but the
Council are by the Act prohibited from using for the purpose of
manufacturing gas or residual products any lands except the lands
described in the schedule to the Act ;

And whereas provision was made by the Local Act with regard
to the quality and testing of the gas supplied by the Council the
borrowing of moneys by the Council for the purposes of the Local Act
and subject as mentioned in Section 47 of the Local Act the re-borrowing
by them of such moneys when paid off ;

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A.D. 1912.

Coalville
Order.

And whereas the Council have in pursuance of the Local Act acquired by agreement the lands described in the schedule to this Order ;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act so as to enable the Council to use for the purposes of their gas undertaking the lands described in the schedule to this Order and to confer on them further powers in relation to the said undertaking and to make further provision in connection therewith as herein-after set forth :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

Repealing
certain provi-
sions of Local
Act.

Art. I. Sections 24 28 and 47 of the Local Act shall be repealed except so far as the same may have been acted upon.

Use of other
lands for gas
purposes.

Art. II. Notwithstanding anything in the Local Act the Council may hold and use the lands described in the schedule to this Order for all or any of the purposes of their gas undertaking including the manufacture and storage of gas and residual products produced in or resulting from the manufacture of gas by them as if such lands were included in and formed part of the lands described in the schedule to the Local Act and the provisions of the Local Act shall apply and have effect accordingly.

Quality of
gas.

Art. III.—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place provided in pursuance of Section 25 of the Local Act when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle Pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light.

(3) The Board of Trade may upon the application of the Council or any five consumers approve the use of any other burner photometer

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or standard light that may appear to that Board to be equally or more suitable for the testing. A.D. 1912.

*Coalville
Order.*

Art. IV.—(1) The Council may by notice in writing require a consumer of gas supplied by the Council and used for the working of an engine to fix and use an antifluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an antifluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an antifluctuator which is not in proper order or repair:

Authorising
Council to
require an
antifluctua-
tor to be used
for control-
ling supply
of gas to a
gas engine.

If the consumer after any such notice as aforesaid fails to fix and use an antifluctuator or to keep an antifluctuator in proper order and repair or to repair renew or replace an antifluctuator which is not in proper order and repair the Council may cease to supply him with gas.

(2) The Council may at all reasonable times demand and shall thereupon have access to any antifluctuator fixed upon any premises to which gas is supplied by the Council and for the purpose of ascertaining whether the antifluctuator is in proper order or repair may take off remove test and inspect the antifluctuator.

(3) For the purposes of this Article an "antifluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Art. V.—(1) The Council shall have power—

Power to
re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under the Local Act or this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under the Local Act or this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment

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A.D. 1912. or making any annual payment which has or may become due in respect
of borrowed moneys.

*Coalville
Order.*

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Short title.

Art. VI. This Order may be cited as the Coalville Order 1912.

The SCHEDULE above referred to.

All that piece of land situate in the Parish of Whitwick in the County of Leicester containing an area of 427 square yards or thereabouts and adjoining the existing gasworks of the Council on the easterly side thereof which said piece of land is bounded on the north by other lands of the Council on the west by the said existing gasworks on the south by cottages and lands belonging or reputed to belong to the Council and on the east by Green Lane; and

All that piece of land situate in the said parish containing an area of 716 square yards or thereabouts and adjoining the said existing gasworks on the north-easterly side thereof which said piece of land is bounded on the north by Hermitage Road on the west and south by other lands of the Council and on the east by Green Lane.

Given under the Seal of Office of the Local Government Board
this Twenty-seventh day of April One thousand nine hundred
and twelve.

(I.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxix.]
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BOROUGH OF DARLINGTON.

A.D. 1912.

*Provisional Order for altering the Darlington Extension and
Improvement Act 1872 and the Local Government Board's
Provisional Orders Confirmation (No. 9) Act 1902.*

*Darlington
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Darlington;—

And to all others whom it may concern.

WHEREAS the Borough of Darlington (herein-after referred to as
“the Borough”) is an Urban District of which the Mayor Aldermen
and Burgesses acting by the Council (herein-after referred to as “the
Corporation”) are the Urban District Council and the local authority
within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Darlington Extension and Improvement Act 1872 (herein-after referred to as “the Local Act”) as altered by the Darlington Orders 1883 to 1906 are in force in the Borough;

35 & 36 Vict.
c. cxii.

And whereas by Section 113 of the Local Act the Corporation were empowered to borrow the sum of One hundred and twenty thousand pounds for the purposes of that Act including the purposes of their water undertaking;

And whereas by Article I. of the Darlington Order 1902 (herein-after referred to as “the Order of 1902”) which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1902 (herein-after referred to as “the Confirming Act of 1902”) the Corporation were empowered with the sanction of the Local Government Board and subject to the provisions of that Order to borrow upon the security of the revenue arising from their water undertaking and of the district fund and general district rate of the Borough such sums not exceeding in the whole the sum of fifty thousand pounds as might be necessary for the purposes of their water undertaking in addition to the moneys previously authorised to be borrowed for those purposes;

2 Edw. 7.
c. lxxxiii.

And whereas by Article III. of the Order of 1902 the moneys borrowed under that Order are required to be repaid within such period not exceeding fifty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or

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A.D. 1912. amend the Local Act as altered as aforesaid and the Confirming Act of 1902 in the manner herein-after set forth:

Darlington Order.

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act as altered as aforesaid and the Confirming Act of 1902 so far as it relates to the Order of 1902 shall be altered so that the following provisions shall take effect that is to say:—

Additional borrowing powers for purposes of water undertaking.

Art. I. The Local Act as altered as aforesaid and the Confirming Act of 1902 so far as it relates to the Order of 1902 shall have effect as if the words "one hundred thousand pounds" were inserted in Article I. of that Order instead of the words "fifty thousand pounds."

Altering period for repayment of borrowed moneys.

Art. II. The Order of 1902 shall have effect and shall be deemed to have always had effect as if the words "not exceeding sixty years" had been inserted in Article III. of that Order instead of the words "not exceeding fifty years."

Short titles.

Art. III. This Order may be cited as the Darlington Order 1912 and the Darlington Orders 1883 to 1906 and this Order may be cited together as the Darlington Orders 1883 to 1912.

Given under the Seal of Office of the Local Government Board
this Nineteenth day of April One thousand nine hundred and twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

URBAN DISTRICT OF KINGTON.

Kington Order.

*Provisional Order for partially repealing and altering the
Local Act 10 George IV. Cap. CII.*

To the Urban District Council of Kington;

And to all others whom it may concern.

WHEREAS the Urban District Council of Kington (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Kington (herein-after referred to as "the District");

10 Geo. IV.
c. cii.

And whereas there are in force in the District the unrepealed provisions of a Local Act passed in the tenth year of the reign of His late Majesty King George IV. and intituled "An Act for lighting

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" watching paving cleansing and improving the Streets Highways and
 " Places within the Town and Borough of Kington in the County of
 " Hereford " (herein-after referred to as " the Local Act ") as altered
 by a Provisional Order duly confirmed by Parliament which does not
 affect the subject-matter of this Order ;

A.D. 1912.
 ———
Kington
Order.

And whereas by Section 67 of the Local Act the predecessors
 of the Council were empowered to borrow moneys for the purposes
 of the Local Act and by that section and by Sections 68 69 70 and
 71 of the said Act provision was made for the raising of the said
 moneys for the transfer of securities and for other matters as therein
 set forth ;

And whereas by Section 72 of the Local Act provision was made
 for the application of the rates authorised by the Local Act to be levied
 and collected ;

And whereas there is now outstanding the sum of One thousand
 seven hundred pounds (herein-after referred to as " the existing debt ")
 in respect of moneys borrowed by the Council or their predecessors
 under the powers and for the purposes aforesaid and it is expedient
 that provision should be made for the repayment of the existing
 debt ;

And whereas the Council have made application to the Local
 Government Board for the issue of a Provisional Order to partially
 repeal alter or amend the Local Act in the manner herein-after set
 forth :

Now therefore We the Local Government Board in pursuance of
 the powers given to Us by Section 303 of the Public Health Act 1875
 and by any other Statutes in that behalf do hereby order that from
 and after the date of the Act of Parliament confirming this Order the
 Local Act shall be partially repealed and altered so that the following
 provisions shall take effect that is to say :—

38 & 39 Vict.
 c. 55.

Art. I.—(1) Sections 67 68 69 70 71 and 72 of the Local Act
 shall be repealed :

Repeal of
 certain sec-
 tions of
 Local Act.

Provided that this repeal shall not in relation to such mortgages
 under the Local Act as are subsisting at the date of the Act of
 Parliament confirming this Order affect the operation of the provisions
 of the Local Act with respect to mortgages and transfers.

(2) All moneys received by the Council in respect of the rates
 assessments and other moneys which the Council are by the Local Act
 authorised to raise levy and collect shall be applied—

Application
 of moneys
 received from
 Local Act
 rates &c.

First—In payment of the interest on all moneys borrowed or
 re-borrowed on the credit of the said rates and assessments ;

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A.D. 1912.
*Kington
 Order.*

Secondly—In payment of the amount of any instalment or annual payment or payment to a sinking fund required to be paid for providing for the discharge of the moneys so borrowed or re-borrowed; and

Lastly—In carrying the several purposes and provisions of the Local Act into execution.

*Borrowing
 powers for
 repayment
 of existing
 debt.*

Art. II. Subject to the provisions of this Order the Council may borrow upon the security of the rate or rates authorised to be made and levied by virtue of the Local Act such moneys as may from time to time be required for the purpose of the repayment of the existing debt or any part thereof.

*Local Loans
 Act and cer-
 tain provisions
 of Public
 Health Act
 made appli-
 cable.*

Art. III. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

*Period for
 repayment
 of existing
 debt and
 moneys bor-
 rowed under
 this Order.*

Art. IV. The existing debt and the moneys borrowed under Article II. of this Order shall be repaid within a period of forty years from the Thirty-first day of March One thousand nine hundred and thirteen and that period is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

*Mode of
 repayment.*

Art. V.—(1) The Council shall repay the existing debt and the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

*Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.*

(2) Subject to the provisions of Article VI. of this Order if the Council determine to repay by means of a sinking fund the existing debt or any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate

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not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

A.D. 1912.

*Kington
Order.*

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to

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A.D. 1912.

*Kington
Order.*

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Art. VI.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. VII.—(1) The Council shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys

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previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys. A.D. 1912.
Kington
Order.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. VIII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed. Application
of borrowed
moneys.

Art. IX.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. X.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the Return as to
provision for
repayment of
debt.

[Ch. cxxix.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 3) Act, 1912.

A.D. 1912.

*Kington
Order.*

provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

*Inquiries and
expenses.*

Art. XI. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Act or this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

A.D. 1912.

Art. XII. This Order may be cited as the Kington Order 1912.

*Kington
Order.*

Short title

Given under the Seal of Office of the Local Government Board
this Twenty-seventh day of April One thousand nine hundred
and twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

URBAN DISTRICT OF PRESCOT.

*Provisional Order to enable the Urban District Council of
Prescot to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

*Prescot
Order.*

To the Urban District Council of Prescot; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Prescot (herein-after referred
to as "the Council") require to purchase and take the lands described
in the schedule hereto for the purpose of dealing with and disposing
of the nightsoil and refuse from their district :

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
following provisions shall have effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. The Council shall be empowered to put in force with
reference to so much of the lands described in the schedule hereto as
are situate in their district, and for the purpose aforesaid the powers
of the Lands Clauses Acts with respect to the purchase and taking of
lands otherwise than by agreement or any of them :

Compulsory
powers of
purchase.

Provided that—

- (a) the lands shall not be used for the storage of nightsoil; and
- (b) no refuse shall be burnt on the lands in a destructor or
otherwise unless the previous sanction of the Local
Government Board has been obtained.

Art. II. This Order may be cited as the Prescot Order 1912.

Short title.

[Ch. cxxix.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 3) Act, 1912.

A.D. 1912.

The SCHEDULE above referred to.

Prescot
Order.

Township of PRESCOT in the County of LANCASTER.

No. and Colour on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupier.
1 coloured and edged green.	Agricultural land being No. 37 in the Ordnance Lancashire Sheet C VII. 7. (Edition of 1908).	The Provost and Scholars of King's College Cambridge.	William Reakes.

Given under the Seal of Office of the Local Government Board
this Twenty-seventh day of April One thousand nine hundred
and twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

RURAL DISTRICT OF SHIFNAL.

Shifnal
Rural Order.

Provisional Order to enable the Rural District Council of
Shifnal to put in force the Compulsory Clauses
of the Lands Clauses Acts.

To the Rural District Council of Shifnal ; —
And to all others whom it may concern.

WHEREAS the Rural District Council of Shifnal (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the construction of works for the disposal of the sewage of the contributory place of Albrighton in their District and for providing access to the said lands :

Now therefore We the Local Government Board in pursuance of
38 & 39 Vict. the powers given to Us by Section 176 of the Public Health Act 1875
c. 55. and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

Compulsory
powers of
purchase.

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Short title.

Art. II. This Order may be cited as the Shifnal Rural Order 1912.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxix.]
Provisional Orders Confirmation (No. 3) Act, 1912.

The SCHEDULE above referred to.

A.D. 1912.

*Shifnal
Rural Order.*

Parish of ALBRIGHTON in the County of SALOP.

Nos. and Colours on deposited Plans.	Description of Lands.	Owner or reputed Owner.	Occupier.
1 Pink.	A piece or parcel of land containing three acres or thereabouts including one half of the Albrighton Brook course adjoining the said land on the northern side being part of the field Number 191 on the $\frac{1}{2500}$ Ordnance Map Sheets XLIV. 11 and XLIV. 12 (Second Edition 1902).	The Right Honourable Charles Henry John Chetwynd-Talbot Earl of Shrewsbury and Talbot.	John Charles Brown.
2 Yellow.	A strip of land being part of the said field Number 191 of the width of twelve feet or thereabouts.	Ditto . .	Ditto.

Given under the Seal of Office of the Local Government Board
this Twentieth day of April One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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